



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 12, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202104268 (Incident Date: July 14, 2021) regarding Police Officer Christina Moncion, Tax No. 954455 (DADS No. 2022-27363)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter in their entirety and has determined that the actions of Police Officer Christina Moncion do not warrant disciplinary action.

In this matter, Police Officer Moncion was engaged in a short foot pursuit of an individual who had just abandoned a motorized scooter and begun to run away from the location where he was initially stopped. Her partner reached the individual first and attempted to handcuff him, but the individual resisted and reached for his waistband. Fearing that he was reaching for a weapon, and seeking to gain compliance in securing handcuffs on the individual, Officer Moncion yelled at the individual, saying essentially "stay still before I tase you in the [expletive] head." When interviewed, Officer Moncion clearly explained that she was not actually going to tase the individual in the head, and that in fact she had not even unholstered her taser, but that she made the remark merely as a tactic to cause the individual to stop reaching for his waistband.

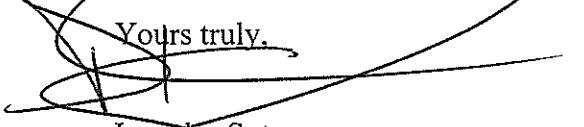
This de-escalation technique was appropriate in this matter, given the dangerous situation where a resisting individual was reaching for what may have been a weapon, and the officers involved had to make split-second decisions to try to ensure the safety of all parties. Patrol Guide Procedure No. 221-01 (Force Guidelines), states that officers should, where appropriate, use de-escalation techniques to safely gain voluntary compliance from subjects to reduce the necessity to use force, and Officer Moncion was successful in de-escalating the situation in this matter.

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Therefore, based on the foregoing, Police Officer Moncion will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (Prohibited Conduct/Abuse of Authority – Threat to Arrest).

Yours truly,


Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office